

CHAPTER 42

An Act to enable the lighthouse on Minicoy Island and sums held in the General Lighthouse Fund in connection therewith to be transferred to the Government of India, and for purposes connected with the matter aforesaid. [2nd June, 1960]

WHEREAS the lighthouse on Minicoy Island (in this Act referred to as "the lighthouse") between the Laccadive and Maldive Islands, is a colonial light within the meaning of the Merchant Shipping (Mercantile Marine Fund) Act, 1898, but has, since the second day of April, nineteen hundred and fifty-six, been administered by the Government of India:

And whereas it is expedient that the lighthouse and the sums held in the General Lighthouse Fund in connection therewith should be transferred to the Government of India;

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Minister of Transport (in this Act referred to as "the Minister") shall have power to transfer to the Government of India on such date as may be agreed between him and that Government all the interest held by him in the lighthouse and in the appurtenances thereto.

Power to transfer to India Minicoy Lighthouse and assets attributable thereto.

(2) On the date referred to in the foregoing subsection the lighthouse shall cease to be a colonial light within the meaning of the Act of 1898, and accordingly section six hundred and seventy of the Merchant Shipping Act, 1894 (which empowers Her Majesty to fix colonial light dues) shall cease to have effect in relation to the lighthouse, and in the Third Schedule to the Act of 1898, the words "Minicoy Island, between the Laccadive and Maldive Islands" shall be repealed.

(3) There shall be paid to the Government of India out of the General Lighthouse Fund (in this section referred to as "the Fund") the following sums, that is to say—

(a) such sum as the Minister, with the consent of the Treasury, may determine to be equivalent to the excess of the proportion of the Fund attributable to light dues in respect of the lighthouse for the period ending with the second day of April, nineteen hundred and fifty-six, over the aggregate of the expenses in connection with the lighthouse relating to that period and falling to be paid out of the Fund;

(b) a sum equal to interest at the rate of four per cent. per annum on the sum payable by virtue of the foregoing paragraph for the period beginning with the third day

of April, nineteen hundred and fifty-six, and ending with the day on which the last mentioned sum is paid;

(c) all the sums carried to the Fund and attributable to light dues due in respect of the lighthouse after the second day of April, nineteen hundred and fifty-six;

(d) in respect of each of the sums referred to in the last foregoing paragraph, a sum equal to interest at the rate of four per cent. per annum thereon for the period beginning with the relevant day and ending with the day on which the sum so referred to is paid.

(4) In the last foregoing subsection,—

(a) in paragraph (a), the reference to expenses falling to be paid out of the Fund includes a reference to expenses which fell to be paid out of the Basses Lights Fund (the balance of which was transferred to the Fund by the Act of 1898), and

(b) in paragraph (d), “relevant day” means, in relation to a sum referred to in paragraph (c) of that subsection, the thirtieth day of September falling in the year in which that sum was carried to the Fund, and for the purposes of this paragraph a year shall be treated as a period of twelve months ending with the thirty-first day of March.

Interpretation and citation.

2.—(1) In this Act—

“the Act of 1898” means the Merchant Shipping (Mercantile Marine Fund) Act, 1898, and

“the General Lighthouse Fund” means the fund of that name established under the Act of 1898.

(2) This Act may be cited as the Merchant Shipping (Minicoy Lighthouse) Act, 1960, and this Act and the Merchant Shipping Acts, 1894 to 1958, may be cited together as the Merchant Shipping Acts, 1894 to 1960.

CHAPTER 43

An Act to prohibit the abandonment of animals; and for purposes connected therewith. [2nd June, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Penalties for abandonment of animals.

1. If any person being the owner or having charge or control of any animal shall without reasonable cause or excuse abandon it, whether permanently or not, in circumstances likely to cause the animal any unnecessary suffering, or cause or procure or, being the owner, permit it to be so abandoned, he shall be guilty of an offence of cruelty within the meaning of the principal Act